

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arie Braizblot	Team: Team # 2	CCRB Case #: 201112823	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 08/01/2011 12:00 AM, Wednesday, 08/03/2011 8:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/3/2013	Precinct: 77		
Date/Time CV Reported Mon, 10/03/2011 12:05 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/03/2011 12:05 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Eric Samuels	01464	923106	WARRSEC
2. DT3 Michael Perez	02470	930939	WARRSEC
3. DT3 Eric Meza	05566	925744	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Marlon Key	06144	936863	WARRSEC
2. DT3 Shiraz Khan	00539	944012	WARRSEC
3. DT3 James Galvin	06573	920311	WARRSEC
4. DT3 Robert Murnane	00801	934016	WARRSEC
5. LT Raymond Camacho	00000	891345	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Eric Samuels	Abuse: Sgt. Eric Samuels supervised the entry of § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . DT3 Michael Perez	Discourtesy: Det. Michael Perez spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SGT Eric Samuels	Force: Sgt. Eric Samuels pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . DT3 Eric Meza	Force: Det. Eric Meza pointed his gun at § 87(2)(b)	D . Unsubstantiated
E . DT3 Eric Meza	Off. Language: Det. Eric Meza made remarks to § 87(2)(b) based upon her sex.	E . Unsubstantiated
F . DT3 Eric Meza	Discourtesy: Det. Eric Meza spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . SGT Eric Samuels	Force: Sgt. Eric Samuels used physical force against § 87(2)(b)	G . Unsubstantiated

Case Summary

On October 3, 2011, § 87(2)(b) called the CCRB and filed the following complaint.

On August 3, 2011, at approximately 8:30 a.m., Sgt. Eric Samuels, Det. Marlon Key, Det. Michael Perez, Det. Eric Meza, and Det. Shiraz Khan arrived at § 87(2)(b) residence, located at § 87(2)(b) § 87(2)(b) in Brooklyn, to question § 87(2)(b) about § 87(2)(b) § 87(2)(b) was an associate of § 87(2)(b) for whom Det. Key had an open arrest warrant. The following allegations resulted from the incident:

- **Allegation A: Abuse of Authority:** Sgt. Eric Samuels supervised the entry of § 87(2)(b) § 87(2)(b) in Brooklyn.
§ 87(2)(g)
It is therefore recommended that **Allegation A** be **unsubstantiated**.
- **Allegation B: Discourtesy:** Det. Michael Perez spoke discourteously to § 87(2)(b) § 87(2)(g)
It is recommended that **Allegation B** be closed as unsubstantiated.
- **Allegation C: Force:** Sgt. Eric Samuels pointed his gun at § 87(2)(b)
- **Allegation D: Force:** Det. Eric Meza pointed his gun at § 87(2)(b) § 87(2)(g)
It is therefore recommended that **Allegations C and D** be **unsubstantiated**.
- **Allegation E: Offensive Language:** Det. Eric Meza made remarks to § 87(2)(b) based upon her sex.
- **Allegation F: Discourtesy:** Det. Eric Meza spoke discourteously to § 87(2)(b) § 87(2)(g)
It is therefore recommended that **Allegations E and F** be **unsubstantiated**.
- **Allegation G: Force:** Sgt. Eric Samuels used physical force against § 87(2)(b) § 87(2)(g)
It is therefore recommended that **Allegation G** be **unsubstantiated**.

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) -old black female, § 87(2)(b), with blonde hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on October 17, 2011 (encl. 8A-C). She also provided additional details by phone on February 4, 2013 (encl. 11). Her testimony is summarized below.

On August 3, 2011, at approximately 8:00 a.m., officers knocked on the door to § 87(2)(b) home, located at § 87(2)(b) in Brooklyn. § 87(2)(b) opened her door and encountered four plainclothes officers. PO1, identified via the investigation as Sgt. Samuels, described as a black male, bald, 6' tall who weighed 250 pounds. PO2, identified by the investigation as Det. Meza, was described as a white male, 5'6" tall, stout, with short black hair. PO3, identified by the investigation as Det. Key, was described as a black male, 5'10" tall, average build, with dark short hair. PO4, identified by the investigation as Det. Khan, was described as a Hispanic male, 5'8" tall, with a medium build.

Sgt. Samuels asked § 87(2)(b) whether her son, § 87(2)(b) lived at the residence. § 87(2)(b) responded that he did and asked to see a warrant. The officers showed § 87(2)(b) a police document with an arrest photograph of § 87(2)(b). § 87(2)(b) did not believe this was a search warrant. § 87(2)(b) attempted to close the door, but an officer placed his foot in the threshold to prevent her from doing so. § 87(2)(b) indicated in her official statement that she left the door ajar and walked to § 87(2)(b) bedroom to wake him but in a later phone statement she stated that she closed the door prior to walking away. In the bedroom, § 87(2)(b) told § 87(2)(b) to exit the kitchen window and go onto the fire escape so she could speak with the officers to determine why they were at the home.

§ 87(2)(b) younger brother, § 87(2)(b) then entered the apartment and the officers entered behind him. Within seconds, § 87(2)(b) heard PO5, identified by the investigation as Det. Perez and who was described as a male, say from the roof, "Put your fucking head back in the window." § 87(2)(b) later informed her that Det. Perez had a gun pointed at his head at that time. § 87(2)(b) complied with Det. Perez's command and re-entered the window. Sgt. Samuels and Det. Meza had their guns pointed at § 87(2)(b) head inside of the kitchen. Det. Perez then entered the home from the window. Det. Meza told § 87(2)(b) she needed to clean her kitchen and called her a "bitch" when she responded that he should clean her home if he wanted it a certain way. Sgt. Samuels threw § 87(2)(b) to the floor and handcuffed him.

After approximately five minutes, the officers lifted § 87(2)(b) and removed him from the home. § 87(2)(b) asked the officers why they were arresting § 87(2)(b) and Det. Meza told her to mind her "fucking" business. § 87(2)(b) did not follow the officers or § 87(2)(b) outside. Within ten minutes, § 87(2)(b) returned home and stated that he was questioned in regard to an individual named § 87(2)(b). § 87(2)(b) informed § 87(2)(b) that he had been arrested at the same time as § 87(2)(b) in the past, but did not know him prior to that incident. The officers then left the location in a white unmarked van.

Victim: § 87(2)(b)

- § 87(2)(b) -old black male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided an official statement by phone on January 22, 2013 from § 87(2)(b) (encl. 9A-D).

On August 3, 2011, at approximately 8:30 a.m., § 87(2)(b) was at his home located at § 87(2)(b) in Brooklyn with his mother, § 87(2)(b) his brother, § 87(2)(b) and his § 87(2)(b)-year-old sister, § 87(2)(b). § 87(2)(b)'s apartment is on the second floor of the building. § 87(2)(b)

§ 87(2)(b) had a co-defendant § 87(2)(b), § 87(2)(b).

§ 87(2)(b) awoke because he was thirsty and exited his bedroom. When § 87(2)(b) entered the kitchen he noticed Sgt. Samuels, Det. Meza, Det. Perez, and Det. Khan standing behind him but did not see how the officers entered the apartment.

Det. Perez indicated that the officers needed to speak with him and § 87(2)(b) approached them. Det. Meza then grabbed § 87(2)(b)'s arm, put his shoulder into § 87(2)(b)'s back,

put him face down on the ground, and handcuffed him. Sgt. Samuels pointed his firearm at § 87(2)(b)'s face and instructed him not to move. Det. Khan then lifted § 87(2)(b) off the ground. § 87(2)(b) asked the officers what was going on and either Det. Meza or Det. Khan told her to mind her “fucking” business. The officers walked § 87(2)(b) to the front door of the apartment and continued to speak with § 87(2)(b) though § 87(2)(b) did not recall what was said. § 87(2)(b) and Maya § 87(2)(b) watched the incident but had no interaction with the officers.

Sgt. Samuels, Det. Meza, Det. Perez, and Det. Khan walked § 87(2)(b) downstairs to a unmarked burgundy van and told him that they just needed to speak with him. The officers entered the van with § 87(2)(b) showed him a photograph of § 87(2)(b) and informed § 87(2)(b) that they had reason to believe that he was harboring § 87(2)(b) in his home. § 87(2)(b) told the officers that it made no sense for him to hide § 87(2)(b). The conversation lasted three minutes and the officers removed § 87(2)(b) from the van and walked him to the front of his building. Det. Meza removed § 87(2)(b)'s handcuffs and Sgt. Samuels used his foot on § 87(2)(b)'s lower back to push him through the building's doorway. The officers then left.

Attempts to Contact Civilians

On December 31, 2012, a call was placed to § 87(2)(b) who § 87(2)(b) and § 87(2)(b) alleged was a witness in the incident, and he decided not to participate in the complaint. § 87(2)(b) did not provide a statement.

NYPD Statements:

Witness Officer: DET. MARLON KEY

- § 87(2)(b) –old black male, § 87(2)(b) bs., with black hair and brown eyes.
- On August 3, 2011, Det. Key worked from 4:27 a.m. to 4:25 p.m. and was assigned to warrant enforcement. Det. Key was dressed in plainclothes and worked with Sgt. Eric Samuels, Det. Michael Perez, Det. Shiraz Khan, and Det. Eric Meza. Sgt. Samuels was assigned to an unmarked Ford van, vehicle no. § 87(2)(e).

Memo Book (encl. 12A-C)

At 8:05 a.m., Det. Key was en route to § 87(2)(b) with warrant number § 87(2)(b). Det. Key arrived at the location at 8:20 a.m. At 8:40 a.m., Det. Key was en route to 100 Centre Street.

CCRB Statement

Det. Key was interviewed at the CCRB on March 8, 2013 (encl. 12A-F). On August 3, 2011, at approximately 8:20 a.m., Sgt. Samuels, Det. Perez, Det. Key, and Det. Meza arrived at § 87(2)(b) in Brooklyn to question § 87(2)(b) about § 87(2)(b) who Det. Key referred to as “§ 87(2)(b)”, who was § 87(2)(b) co-defendant in § 87(2)(b) and had an open arrest warrant for a felony. Det. Key interviewed other individuals who indicated that § 87(2)(b) may know the whereabouts of § 87(2)(b) and that he may be staying with § 87(2)(b). No warrant or I-card was issued for § 87(2)(b), § 87(2)(b) and § 87(2)(b) are black males with similar facial features.

Det. Key did not independently recollect Det. Khan at the scene. As the officers exited their vehicle, they encountered a black male, § 87(2)(b) exiting the building. § 87(2)(b) informed the officers that § 87(2)(b) and § 87(2)(b) were in the apartment and left. The officers did not ask § 87(2)(b) about § 87(2)(b). The officers entered the building and arrived at § 87(2)(b) apartment on the top floor. Det. Key knocked on the apartment door and § 87(2)(b) opened the door slightly. Det. Key could not see into the apartment at this point. Det. Key identified himself and asked if § 87(2)(b) is home. The officers did not

explain why they needed to speak with § 87(2)(b) and did not ask to enter the apartment. § 87(2)(b) indicated that § 87(2)(b) was at the residence, asked the officers to hold on one minute, and walked away from the door. Det. Key did not recall if § 87(2)(b) closed the door or left it open slightly as she walked away. § 87(2)(b) never asked to see a warrant and Det. Key never showed her § 87(2)(b) arrest warrant.

After § 87(2)(b) walked away from the door, Det. Key heard whispers and footsteps inside the apartment. Det. Perez ascended a ladder in the hallway on the roof and guarded the fire escape. Approximately one minute later, Det. Perez radioed that a male was trying to flee out of a window onto the fire escape. Det. Key initially thought that § 87(2)(b) was in the apartment and attempting to escape. Det. Key did not hear Det. Perez say anything from the roof, including, “Get your head back in the fucking window”. No profanity was used against § 87(2)(b) by any officer at any time during the incident. Det. Key, Sgt. Samuels, and Det. Meza entered the apartment with their shields displayed and their guns holstered in response to the radio call and walked toward the kitchen. The kitchen is to the right of the front door and is not visible from the doorway. Det. Key did not recall if the door was closed or open slightly when they entered, but it was unlocked. Det. Key did not recall if § 87(2)(b) was in front of the door or if they had to pass her as they entered the residence.

Det. Key, Sgt. Samuels, and Det. Meza walked to a window in the kitchen that leads to a fire escape. At that point, Det. Perez said, “Police”, and ordered § 87(2)(b) to go back inside. § 87(2)(b) was climbing back into the apartment and his body was halfway inside the kitchen. Det. Key, Sgt. Samuels, and Det. Meza identified themselves and ordered § 87(2)(b) to turn around. § 87(2)(b) did not comply immediately and Det. Key and Det. Meza grabbed him by the arms, placed him on the ground, and handcuffed him. No officer drew or pointed a firearm at any point during the incident. No officer used any additional force against § 87(2)(b). Det. Key did not recall if Det. Perez entered the apartment at any time. Det. Key lifted § 87(2)(b) off the ground, saw his face, and confirmed that he was not § 87(2)(b). § 87(2)(b) then started to scream at the officers, though Det. Key did not recall what she said.

Det. Key removed § 87(2)(b) from the apartment given that § 87(2)(b) shouting made it impossible to speak with him. The officers did not search the apartment and Det. Key, Sgt. Samuels, and Det. Meza remained in the kitchen throughout the incident. Det. Key did not tell § 87(2)(b) to mind her “fucking” business and he did not recall if Sgt. Samuels, Det. Meza, or Det. Perez used the word “fuck” toward § 87(2)(b). Det. Key did not recall if any officer used any profanity toward § 87(2)(b) or if any officer called § 87(2)(b) a “bitch”. Det. Key, Sgt. Samuels, and Det. Meza brought § 87(2)(b) downstairs and placed him in the officers’ van. Det. Key entered the van with § 87(2)(b) while Sgt. Samuels, Det. Meza, and Det. Perez remained outside.

Det. Key performed a search of § 87(2)(b) for warrants that yielded negative results. Det. Key questioned him about § 87(2)(b) and § 87(2)(b) said that § 87(2)(b) is hiding. Det. Key asked § 87(2)(b) to exit the vehicle and removed § 87(2)(b) handcuffs. § 87(2)(b) stood outside the building as the officers drove off. Sgt. Samuels did not use the sole of his foot on § 87(2)(b) back or rear to push him or use any force against § 87(2)(b) outside the apartment.

Subject Officer: SGT. ERIC SAMUELS

- § 87(2)(b) –old black male, § 87(2)(b), with black hair and brown eyes.
- On August 3, 2011, Sgt. Samuels worked from 4:25 a.m. to 1 p.m. and was assigned to warrant enforcement as a supervisor. Sgt. Samuels was dressed in plain clothes and worked with Det. Perez, Det. Key, Det. Khan, and Det. Meza. Sgt. Samuels was assigned to an unmarked burgundy van, vehicle number § 87(2)(e).

Memo Book (encl. 14A-C)

At 8:20 a.m., Sgt. Samuels arrived at § 87(2)(b) with warrant number § 87(2)(b). At 8:40 a.m., Sgt. Samuels reported negative results.

CCRB Statement

Sgt. Samuels was interviewed at the CCRB on February 27, 2013 (encl. 14A-F). § 87(2)(g)

The officers arrived at the § 87(2)(b) residence to determine if an individual with an open arrest warrant, identified by the investigation as § 87(2)(b) was at the location. Sgt. Samuels indicated that § 87(2)(b) was § 87(2)(b) co-defendant in the case the warrant stemmed from. The officers ascended to either the second or third floor together. Det. Perez then climbed onto the roof while Sgt. Samuels, Det. Key, Det. Khan, and Det. Meza stood in front of the apartment door. An officer, Sgt. Samuels did not recall who, knocked on the apartment door.

When § 87(2)(b) opened the door either Det. Key, Det. Khan, or Det. Meza asked to speak with § 87(2)(b). Sgt. Samuels was unable to see into the apartment. Sgt. Samuels did not recall if the officers asked to enter the apartment. § 87(2)(b) said “hold on” but Sgt. Samuels did not recall if § 87(2)(b) walked away from the door or remained in front of the doorway. § 87(2)(b) did not try to push the door closed on the officers. Sgt. Samuels then heard Det. Perez shout, “Get back inside!”. Det. Perez did not tell § 87(2)(b) to get his head back in the “fucking” window and no officer used profanity against § 87(2)(b).

Sgt. Samuels, Det. Key, Det. Khan, and Det. Meza immediately ran past § 87(2)(b) and entered the apartment. Sgt. Samuels, Det. Key, Det. Khan, and Det. Meza did not draw their firearms at any time. The officers went to the back of the apartment and saw § 87(2)(b) body in the frame of a window leading to a fire escape. Sgt. Samuels thought § 87(2)(b) was planning to escape and the officers grabbed him. Sgt. Samuels did not recall if Det. Perez entered the apartment. The officers then handcuffed § 87(2)(b). No further force was used against § 87(2)(b) and he was handcuffed without resistance. Sgt. Samuels did not recall if § 87(2)(b) was placed on the ground.

Sgt. Samuels and his team, though he did not recall if Det. Perez was in the apartment, then checked all of the rooms of the apartment. Sgt. Samuels searched the rooms in the apartment for § 87(2)(b) given that he was suspicious § 87(2)(b) tried to flee. Sgt. Samuels and his team checked under beds, behind the couch, in closets, and other areas where an individual can hide but did not check any drawers. Sgt. Samuels did not recall if he or his partners spoke with § 87(2)(b). No officer called § 87(2)(b) a “bitch” at any time. No officer told § 87(2)(b) to mind her “fucking” business or used any profanity against § 87(2)(b).

The officers then escorted § 87(2)(b) into Sgt. Samuels’ burgundy van. The officers all entered the van with § 87(2)(b). Det. Key spoke with § 87(2)(b) about § 87(2)(b). Sgt. Samuels removed § 87(2)(b) handcuffs outside the building. Sgt. Samuels did not use the sole of his foot on § 87(2)(b) at any point. Sgt. Samuels did not use any force against § 87(2)(b) outside the apartment.

Subject Officer: DET. MICHAEL PEREZ

- § 87(2)(b) -old Hispanic male, § 87(2)(b) with brown hair and blue eyes.
- On August 3, 2011, Det. Perez worked from 4:27 a.m. to 1:00 p.m. and was assigned to warrant enforcement. Det. Perez was dressed in plainclothes and worked with Sgt. Eric Samuels, Det. Marlon Key, Det. Shiraz Khan, and Det. Eric Meza. Det. Perez was assigned to an unmarked van, vehicle no. § 87(2)(e).

Memo Book (encl. 16A-C)

At 8:05 a.m., Det. Perez was en route to § 87(2)(b) with warrant number F2011200237. Det. Perez arrived at the location at 8:20 a.m. and was en route to 100 Centre Street at 8:40 a.m.

CCRB Statement

Det. Michael Perez was interviewed at the CCRB on March 13, 2013 (encl. 16A-F). § 87(2)(g)

Det. Perez did not know if an I-card or arrest warrant was issued for § 87(2)(b). Det. Perez saw a picture of § 87(2)(b) prior to arriving at the location but only recalled he was a black male. Det. Perez did not have any additional information about § 87(2)(b) or reason to believe that the suspect was at the location.

Det. Perez did not recall if the officers interacted with any individual outside the building. The officers ascended a staircase to the top floor and waited for Det. Perez to climb onto the roof prior to knocking on the door. Det. Perez stood on the roof and looked down at a window that led to a fire escape outside § 87(2)(b) apartment. Det. Perez did not see the officers knock on the door or speak with anyone at the front door.

From the roof, Det. Perez did not hear anything inside the apartment. Det. Perez observed § 87(2)(b) exiting the apartment onto the fire escape. § 87(2)(b) body was halfway out the window. Det. Perez identified himself as an officer and told § 87(2)(b) to get back inside. § 87(2)(b) looked up at Det. Perez but did not comply and eventually climbed onto the fire escape landing. Det. Perez saw § 87(2)(b) face but could not confirm that he was not § 87(2)(b). Det. Perez did not recall how many times he asked § 87(2)(b) to re-enter the apartment. Det. Perez did not tell § 87(2)(b) to get his head back in the “fucking” window, or use any profanity against § 87(2)(b). Det. Perez radioed to his team and indicated that an individual was exiting the window, but he did not recall his exact words. Det. Perez did not make any additional observations or hear anything indicating that § 87(2)(b) was leaving the apartment in response to the officers’ presence.

Seconds later, § 87(2)(b) re-entered the apartment. Det. Perez could not see if § 87(2)(b) entered voluntarily or if he was pulled into the apartment by officers. One minute later, officers radioed Det. Perez and confirmed that § 87(2)(b) was in custody and told him to come downstairs. Det. Perez walked back down into the hallway and entered the apartment. Inside the apartment, § 87(2)(b) was on the floor in handcuffs and Det. Meza, Sgt. Samuels, and Det. Key stood near him. Det. Perez did not recall if Det. Khan was inside the apartment. No officer drew his firearm and Det. Perez did not draw his firearm at any point.

The officers lifted § 87(2)(b) off the ground and spoke with him to determine if he was § 87(2)(b). § 87(2)(b) was screaming at the officers, but Det. Perez did not recall what she said. Det. Perez did not hear Det. Meza or any officer call § 87(2)(b) a “bitch.” Det. Perez did not tell § 87(2)(b) to mind her “fucking” business and no officer used any profanity toward her.

Det. Perez did not recall who walked § 87(2)(b) out of the apartment or if any officer remained in the apartment. Det. Perez did not look around the apartment or see any officer look around the apartment. Outside the van an officer checked § 87(2)(b) for warrants and the officers told § 87(2)(b) why they were at his residence.

Det. Key interviewed § 87(2)(b) inside the van and Sgt. Samuels then released him. § 87(2)(b) walked away but did not re-enter his building. Det. Perez did not see Sgt. Samuels use the sole of his foot on § 87(2)(b) to push him through the threshold of the building or see Sgt. Samuels use any force against § 87(2)(b) outside the building.

Subject Officer: DET. ERIC MEZA

- § 87(2)(b) -old white male, § 87(2)(b), with black hair and brown eyes.
- On August 3, 2011, Det. Meza worked from 4:27 a.m. to 1:00 p.m. and was assigned to warrant enforcement. Det. Meza was dressed in plainclothes and worked with Sgt. Eric

Samuels, Det. Marlon Key, Det. Shiraz Khan, and Det. Michael Perez. Det. Meza was assigned to an unmarked van, vehicle no. § 87(2)(e), § 87(2)(b).

Memo Book (encl. 18A-C)

At 8:05 a.m., Det. Meza was en route to § 87(2)(b) with warrant number § 87(2)(b). Det. Meza arrived at the location at 8:20 a.m. and was en route to 100 Centre Street at 8:40 a.m.

CCRB Statement

Det. Meza was interviewed at the CCRB on March 19, 2013 (encl. 18A-F). § 87(2)(g)

Det. Meza indicated that the officers were at the location to execute an arrest warrant or I-card for § 87(2)(b) but did not recall why the officers went to § 87(2)(b) residence. Det. Meza saw a picture of § 87(2)(b) prior to arriving to the location but only recalled him as a black male. Det. Meza did not recall if the officers interacted with any individual outside the building. When § 87(2)(b) answered the door, she opened it wide and the officers informed her that they were at the location to enforce a warrant or I-card. Det. Meza did not recall what details were provided or how § 87(2)(b) responded. However, § 87(2)(b) was loud and seemed aggravated. Det. Meza did not recall if § 87(2)(b) asked to see documentation or if any officer showed her documentation.

One minute later, Det. Perez radioed that a black male was going onto the fire escape. Det. Meza did not recall additional details of the radio call. Det. Meza, Sgt. Samuels, Det. Key, and Det. Khan walked past § 87(2)(b) who stood in the doorway with the door wide open, and entered the apartment with their firearms holstered. § 87(2)(b) did not block the entrance and Det. Meza did not recall if she tried to prevent the officers from entering. The officers never asked to enter the apartment. Det. Meza did not recall if § 87(2)(b) indicated that she did not want the officers inside her apartment.

Det. Meza saw a black male, § 87(2)(b) entering the kitchen from a window leading to the fire escape. Det. Meza did not know the black male was § 87(2)(b) until after he was handcuffed. Det. Perez ordered § 87(2)(b) into the kitchen but Det. Meza did not hear Det. Perez tell § 87(2)(b) to get his head back in the “fucking” window. No officer used any profanity toward § 87(2)(b). Det. Meza did not recall how much of § 87(2)(b) body was outside the window when he first observed him.

The officers brought § 87(2)(b) back into the kitchen while § 87(2)(b) stood nearby. Det. Meza did not recall if he touched § 87(2)(b). § 87(2)(b) was then handcuffed and brought to the ground, but Det. Meza did not recall which officers took these actions. No additional force was used against § 87(2)(b). Det. Meza never drew his firearm or pointed it at § 87(2)(b) and no other officer drew his firearm. Det. Meza did not call § 87(2)(b) a “bitch” and no other officer called her a “bitch”. Det. Meza did not tell § 87(2)(b) to mind her “fucking” business and no officer on the scene used any profanity against § 87(2)(b).

An officer then used a mobile fingerprinting machine to determine § 87(2)(b) was not § 87(2)(b). Det. Meza did not recall if this occurred inside or outside the apartment. Det. Meza did not recall if § 87(2)(b) was asked about § 87(2)(b) if any rooms in the apartment were searched, or if Det. Perez entered the apartment. The officers left the apartment together. Det. Meza did not see Sgt. Samuels use the sole of his foot to push § 87(2)(b) rear or use any force against § 87(2)(b) outside the apartment.

Witness Officer: DET. SHIRAZ KHAN

- § 87(2)(b) -old Asian male, § 87(2)(b), with black hair and brown eyes.
- On August 3, 2011, Det. Khan worked from 4:27 a.m. to 1:00 p.m. and was assigned to warrant enforcement. Det. Khan was dressed in plainclothes and worked with Sgt. Eric

Samuels, Det. Michael Perez, Det. Marlon Key, and Det. Eric Meza. Det. Khan was assigned to an unmarked van, vehicle no. § 87(2)(e), § 87(2)(b).

Memo Book (encl. 20A-C)

At 8:05 a.m., Det. Khan was en route to § 87(2)(b) with warrant number § 87(2)(b). Det. Khan arrived at the location at 8:20 a.m. and was en route to 100 Centre Street at 8:40 a.m.

CCRB Statement

Det. Shiraz Khan was interviewed at the CCRB on March 13, 2013 (encl. 20A-E). Det. Khan was new to the Warrant Section and was in training during the incident. Det. Khan did not recall most of the interaction with the following exceptions.

The officers were at § 87(2)(b) to speak with an individual about one of Det. Key's cases. Once Det. Perez was on the roof, an officer knocked on the door to the apartment and § 87(2)(b) opened the door slightly. Det. Key, Det. Meza, and Sgt. Samuels explained Det. Key's case to § 87(2)(b). Det. Khan did not recall if § 87(2)(b) told the officers to hold on or if she walked away from the door. When the officers received Det. Perez's radio call, which indicated that an individual exited the apartment onto the fire escape, § 87(2)(b) stood at her front door. Det. Khan did not hear Det. Perez say, "Get your head back in the fucking window".

Det. Khan stayed in the hallway while Sgt. Samuels, Det. Meza, and Det. Key pushed open the door and entered the apartment together. Sgt. Samuels, Det. Meza, and Det. Key's firearms were holstered as they entered. Det. Khan did not recall if § 87(2)(b) provided consent to enter her apartment or where she stood as the officers entered. Det. Khan did not recall if he entered the residence but did peek into the apartment.

Det. Khan did not hear any officer use any profanity toward § 87(2)(b). Det. Khan did not recall where the officers' firearms were once they were inside the apartment or if Sgt. Samuels or Det. Meza pointed a firearm at § 87(2)(b). Det. Khan did not recall if any officer spoke to § 87(2)(b) inside the apartment, called her a "bitch", or told her to mind her "fucking" business. Det. Khan did not see any officer look into any rooms in the apartment.

Det. Khan, Sgt. Samuels, Det. Key, and Det. Meza exited the apartment with § 87(2)(b) and met Det. Perez outside the building. Det. Khan did not recall if Det. Perez was inside the apartment at any point. Outside the building, the officers spoke to § 87(2)(b) for approximately five minutes and released him. Det. Khan did not recall if Sgt. Samuels used the sole of his foot to push § 87(2)(b) into the building or if Sgt. Samuels used any force against § 87(2)(b).

Additional Officers Interviewed

Det. James Galvin was interviewed at the CCRB on May 24, 2012 (encl. 21A-E). Lt. Raymond Camacho was interviewed at the CCRB on January 24, 2013 (encl. 22A-D). Det. Murnane was interviewed at the CCRB on January 29, 2013 (encl. 22A-D). The investigation determined that Det. Galvin, Lt. Camacho, and Det. Murnane were not involved in the incident.

NYPD Document

Warrant Inquiry Log (encl. 26A-B)

On November 29, 2011, a search for any open warrants for § 87(2)(b) was returned with negative results.

Status of Civil Proceedings (encl. 28)

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of March 21, 2013, over one year and four months after the filing deadline, with regard to the incident.

Civilians' Criminal Histories (encl. 27A-M)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
 - [redacted]
[redacted]
[redacted]
[redacted]
 - [redacted]
[redacted]
[redacted]
[redacted]
- As of March 29, 2013, the Booking and Arraignment Disposition System reveals no arrests for [§ 87(2)(b)]

Civilians' CCRB Histories

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 4).
- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 5).

Subject Officers' CCRB Histories

- Sgt. Samuels has been a member of the service for fourteen years and there are no substantiated CCRB allegations against him (encl. 3).
- Det. Perez has been a member of the service for ten and there is one substantiated CCRB allegations against him. In CCRB case no. 200702612, the Board substantiated a vehicle search allegation and recommended charges. The final NYPD disposition was no disciplinary action (encl. 2).
- Det. Meza has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officers

- Sgt. Samuels acknowledged that officers entered the [§ 87(2)(b)] residence and he was the supervisor on the scene. [§ 87(2)(g)]
- Det. Perez acknowledged that he was the only officer on the roof and instructed [§ 87(2)(b)] to get back inside his apartment. Allegation B is therefore pleaded to Det. Perez.
- [§ 87(2)(b)] alleged that an officer, who he described as a 41-year-old black male with a dark complexion, 6'1" tall, heavy build and a short haircut, pointed his firearm at [§ 87(2)(b)] and used the sole of his foot to kick [§ 87(2)(b)] through the building doorway. [§ 87(2)(b)] alleged that an officer, who she described as a black male, 6' feet tall, who weighed 250 pounds., pointed his gun at [§ 87(2)(b)] Sgt. Samuels is a [§ 87(2)(b)]-old black male, stands [§ 87(2)(b)]. [§ 87(2)(g)]
[redacted]
[redacted]
- [§ 87(2)(b)] alleged that an officer, who she described as a white male, 5'6" tall, stout build, with short black hair, pointed his gun at [§ 87(2)(b)] called her a "bitch", and told her to mind her "fucking" business. Det. Meza is a [§ 87(2)(b)] white male, weighs [§ 87(2)(b)], and has black hair. [§ 87(2)(g)]
[redacted]
[redacted]

Allegations not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: Sgt. Eric Samuels supervised the entry of § 87(2)(b) in Brooklyn.

It is undisputed that officers entered the § 87(2)(b) residence under Sgt. Samuels' supervision.

§ 87(2)(g)

§ 87(2)(b) stated that once she walked away from the door, § 87(2)(b) entered the residence and the officers entered behind him. Sgt. Samuels and Det. Key indicated that the officers arrived at the § 87(2)(b) residence with an arrest warrant for § 87(2)(b) to question § 87(2)(b) about § 87(2)(b). Det. Key stated that he conducted interviews with individuals who said that § 87(2)(b) and § 87(2)(b) were friends and § 87(2)(b) may be staying with § 87(2)(b). However, the officers did not have an I-card or arrest warrant for § 87(2)(b). Det. Key indicated that he spoke with § 87(2)(b) outside the building and he confirmed that § 87(2)(b) and § 87(2)(b) were inside the apartment. However, Det. Key did not speak with § 87(2)(b) about § 87(2)(b). Det. Key, Det. Meza, Det. Khan, and Det. Perez indicated that the officers entered the apartment immediately after Det. Perez radioed that a male was exiting the apartment onto the fire escape. Sgt. Samuels stated that the officers entered the apartment after Det. Perez shouted, "Get back inside!" Sgt. Samuels and Det. Key said that they believed the male exiting the apartment was § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation B: Discourtesy: Det. Michael Perez spoke discourteously to § 87(2)(b)

Allegation E: Offensive Language: Det. Eric Meza made remarks to § 87(2)(b) based upon her sex.

Allegation F: Discourtesy: Det. Eric Meza spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that seconds after officers entered her residence she heard Det. Perez tell § 87(2)(b) to get his "fucking" head back in the window. § 87(2)(b) did not make this allegation. § 87(2)(b) also alleged that Det. Meza called her a "bitch" and told her to mind her "fucking" business. § 87(2)(b)

§ 87(2)(b) stated that either Det. Meza or Det. Perez told § 87(2)(b) to mind her “fucking” business but he did not make the offensive language allegation.

Det. Perez denied telling § 87(2)(b) to get his head in the “fucking” window or using any profanity against § 87(2)(b). Det. Perez did not hear Det. Meza or any officer call § 87(2)(b) a “bitch” and indicated that no officer used any profanity against § 87(2)(b) including tell her to mind her “fucking” business. Det. Meza denied calling § 87(2)(b) a “bitch” or telling her to mind her “fucking” business. Det. Meza did not hear Det. Perez use the word “fuck” toward § 87(2)(b) and indicated that no officer used any profanity against § 87(2)(b). Det. Key did not hear Det. Perez use the word “fuck” against § 87(2)(b) and indicated that no officer used profanity against § 87(2)(b). Det. Key and Det. Khan did not recall if any officer called § 87(2)(b) a “bitch” or used any profanity against her, including the word “fuck”. Det. Khan did not recall if Det. Perez used the word “fuck” toward § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegations B, E, and F** be **unsubstantiated**.

Allegation C: Force: Sgt. Eric Samuels pointed his gun at § 87(2)(b)

Allegation D: Force: Det. Eric Meza pointed his gun at § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that Sgt. Samuels and Det. Meza entered her residence and pointed their firearms at § 87(2)(b) head in the kitchen. § 87(2)(b) indicated that only Sgt. Samuels pointed his firearm at him. Sgt. Samuels, Det. Meza, Det. Key, Det. Perez, stated that their firearms remained in their holsters throughout the incident and that no officer drew a gun. Det. Khan did not recall if Sgt. Samuels or Det. Meza drew or pointed their guns at § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be **unsubstantiated**.

Allegation G: Force: Sgt. Eric Samuels used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after Det. Meza removed his handcuffs in front of his building, Sgt. Samuels used the sole of his foot on § 87(2)(b) lower back to push him through the building’s doorway. Sgt. Samuels denied using the sole of his foot to push § 87(2)(b) or using any force against § 87(2)(b) outside the apartment. Det. Key, Det. Meza, and Det. Perez indicated that they did not see Sgt. Samuels use the sole of his foot to push § 87(2)(b) or use any force against § 87(2)(b) outside the apartment. Det. Khan did not recall if Sgt. Samuels used his foot to push § 87(2)(b) or if he used any force against § 87(2)(b) outside the building.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **unsubstantiated**.

Team: 2

Investigator: _____
Signature Print Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date